

F. No. 401/11/2022-Cus-III
Government of India
Ministry of Finance
Department of Revenue
(Central Board of Indirect Taxes & Customs)

Room No. 229A, North Block
New Delhi, Dated: 17th April, 2023

To,

All Principal Chief Commissioners/ Chief Commissioners
(Customs / Customs (Preventive) / CGST & Customs)
All Principal DGs/DGs under CBIC
All Principal Commissioners / Commissioners (Customs / Customs (Preventive))

**Subject: Registration of Importers as per provision of Plastic Waste Management
Rues, 2016, as amended-reg**

Madam/Sir,

Kind attention is invited to letter No. CP-20/94/2021-UPC-II-HO-CPCB-HO dated 24.03.2023 received from Central Pollution Control Board (CPCB) on the subject mentioned above (Copy enclosed).

2.1 As a background, importers of plastic packaging product or products with plastic packaging or carry bags or multi-layered packaging or plastic sheets or like require registration with CPCB/SPCB/PCC at the time of clearance.

2.2. The communication has brought out that difficulties are being faced by several importers, as their consignment is held up, as the registration on Centralised EPR portal is still under process.

2.3 In view of above, CPCB has requested concerned authorities to consider clearance of above-mentioned import consignments, based on the proof of submission of application for registration on the portal. The real-time status of the submitted application is also available in the National Dashboard section of the centralized EPR Portal (<https://eprplastic.cpcb.gov.in/>).

3. It is requested to sensitize the officers under your jurisdiction to take necessary action.

4. The difficulties, if any, in the implementation of this Instruction may please be brought to the notice of the Board.

Hindi version follows.

Encl: as above



(Manish Kumar Choudhary)
OSD (Customs-III)
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केन्द्रीय प्रदूषण नियंत्रण बोर्ड
CENTRAL POLLUTION CONTROL BOARD
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय भारत सरकार
MINISTRY OF ENVIRONMENT, FOREST & CLIMATE CHANGE GOVT. OF INDIA

File No: CP-20/94/2021-UPC-II-HO-CPCB-HO

Dated: 24.03.2023

To,

The Chairperson,
Central Board of Indirect Taxes and Customs
North Block, Secretariat Building,
New Delhi – 110001

Urgent
There is also a
reference in this form
Shana Shera 11/28/23

Sub: Registration of Importers as per provision of Plastic Waste Management
Rules, 2016, as amended

JS Customs

Ref: B-17011/7/UPC-II-PWM(MLP)/2021 dated 01-12-2021

Pl discuss 27/3/23

Director (Cus)

This has reference to the CPCB letter vide F.No. B-17011/7/UPC-II-PWM(MLP)/2021 dated December 01, 2021 wherein it was requested to ensure verification of registration obtained from CPCB/SPCB/ PCC (as applicable) at the time of clearing the consignment of Importers of plastic packaging product or products with plastic packaging or carry bags or multilayered packaging or plastic sheets or like.

However, it has been brought to our notice that the import consignments of several importers are held up at the customs, while their application for Registration on Centralized EPR Portal is under process in CPCB/SPCB/PCC, affecting smooth functioning of the business activities of the importer.

In view of above, you are requested to issue necessary instructions to concerned authorities to consider clearance of import consignments of plastic packaging/ products with plastic packaging based on proof of submission of application for Registration on the centralized EPR portal for Plastic Packaging. The real time status of submitted application is also available in National Dashboard section of centralized EPR Portal (<https://eprplastic.cpcb.gov.in/>).

This issues with approval of component authority.

Prashant Gargava
(Prashant Gargava)
Member Secretary



SPEED-POST / E-MAIL

केन्द्रीय प्रदूषण नियंत्रण बोर्ड
CENTRAL POLLUTION CONTROL BOARD
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय भारत सरकार
MINISTRY OF ENVIRONMENT, FOREST & CLIMATE CHANGE GOVT. OF INDIA

F. No.B-17011/7/UPC-II-PWM (MLP)/2021

Dated: 01.12.2021

To,

**The Chairperson,
Central Board of Indirect Taxes and Customs
North Block, Secretariat Building,
New Delhi - 110001**

Sub: Registration of Importers as per provision of Plastic Waste Management Rules, 2016 as amended

Sir,

Ministry of Environment, Forest and Climate Change has notified Plastic Waste Management (PWM) Rules 2016 (copy enclosed) to give thrust to plastic waste management including source segregation, processing and disposal of plastic waste based on the "Polluter Pays Principle"

As per Section 9 of PWM Rules, Producers, Importers & Brand Owners (PIBOs) who introduce plastic waste in the market due to their products in form of carry bags, multi-layered packaging, plastic sheets or like, are required to fulfill Extended Producer Responsibility to ensure environmentally sound management of this plastic waste.

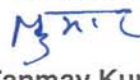
The PIBOs are further required to obtain Registration from concerned State Pollution Control Board (SPCB)/ Pollution Control Committee (PCC) or Central Pollution Control Board in accordance with Section 13(2) of the PWM Rules which provides that:

"Every producer or brand-owner shall, for the purpose of registration or for renewal of registration, make an application in Form-I to

- i. *"The concerned State Pollution Control Board or Pollution Control Committee of the Union territory, if operating in one or two States or Union Territories"; or*
- ii. *"The Central Pollution Control Board, if operating in more than two States or Union Territories"*

For effective implementation of the above, you are requested to get the necessary instructions issued to the concerned to ensure verification of registration obtained from CPCB/SPCB/PCC (as applicable) at the time of clearing the consignment of Importers of plastic carry bags/multi-layered packaging/plastic sheets or like.

Yours faithfully,


(Tanmay Kumar)
Chairman

Encl.: As above